OFFERING MEMORANDUM

Saddlebrook Market Lofts | Boston, MA

Property	Saddlebrook Market Lofts
Location	2819 Pioneer Drive, Boston, MA 23432
Property Type	Mixed-Use
Size	42,996 SF
Year Built	1969
Offering	Unpriced - Offers Due November 16, 2019

Business Plan Progress

Key risks include interest rate exposure, tenant rollover, construction cost overruns and local supply additions. Projected levered IRR is 10.6% with an equity multiple of 1.19x over the hold period. The property is walkable to transit, with 40 structured parking spaces shared between uses. Leasing velocity improved during the period and management expects further upward pressure on in-place rents. Residential units are leased on 12-month terms while the commercial component is leased on a triple net basis.

Residential units are leased on 12-month terms while the commercial component is leased on a triple net basis. Distributions to investors for the quarter were paid at an annualized rate of 4.0% on contributed capital. Projected levered IRR is 9.6% with an equity multiple of 1.5x over the hold period. The investment thesis is based on stabilizing occupancy, completing the capital plan and capturing rent growth to market. Percentage rent and CAM reimbursements are tracked separately for the commercial component. The business plan contemplates a hold period of 8 years with disposition upon achievement of target returns.

Demographics and Employment

Market vacancy for comparable Mixed-Use product stands at 9.7%, down from 6.8% two years ago. Median household income within a 1-mile radius of the property is approximately $395,000 and has grown 6.8% annually. New construction starts have decelerated due to higher financing costs and tighter lending standards, which supports the existing supply. Percentage rent and CAM reimbursements are tracked separately for the commercial component. Saddlebrook Market Lofts is located in Boston, MA, a market that has recorded 10.5% population growth over the last five years. Employment growth is led by healthcare, logistics, education and professional services sectors.

Median household income within a 1-mile radius of the property is approximately $451,000 and has grown 2.8% annually. New construction starts have decelerated due to higher financing costs and tighter lending standards, which supports the existing supply. Residential units are leased on 12-month terms while the commercial component is leased on a triple net basis. Investor demand for Mixed-Use assets in Boston remains strong with recent trades at capitalization rates between 7.93% and 7.93%. Rent growth in the submarket has averaged 7.6% annually over the past 8 years.

Business Plan Progress

Key risks include interest rate exposure, tenant rollover, construction cost overruns and local supply additions. The business plan contemplates a hold period of 8 years with disposition upon achievement of target returns. Distributions to investors for the quarter were paid at an annualized rate of 3.8% on contributed capital. Projected levered IRR is 6.2% with an equity multiple of 1.16x over the hold period.

The property is walkable to transit, with 40 structured parking spaces shared between uses. Leasing velocity improved during the period and management expects further upward pressure on in-place rents. Residential units are leased on 12-month terms while the commercial component is leased on a triple net basis. The business plan contemplates a hold period of 4 years with disposition upon achievement of target returns.

Demographics and Employment

The property is walkable to transit, with 4 structured parking spaces shared between uses. Percentage rent and CAM reimbursements are tracked separately for the commercial component. Market vacancy for comparable Mixed-Use product stands at 11.1%, down from 3.9% two years ago. Saddlebrook Market Lofts is located in Boston, MA, a market that has recorded 2.3% population growth over the last five years. New construction starts have decelerated due to higher financing costs and tighter lending standards, which supports the existing supply.

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Risk Considerations

Leasing velocity improved during the period and management expects further upward pressure on in-place rents. The business plan contemplates a hold period of 3 years with disposition upon achievement of target returns. Percentage rent and CAM reimbursements are tracked separately for the commercial component. Distributions to investors for the quarter were paid at an annualized rate of 7.5% on contributed capital. Projected levered IRR is 10.2% with an equity multiple of 1.48x over the hold period. Key risks include interest rate exposure, tenant rollover, construction cost overruns and local supply additions.

Percentage rent and CAM reimbursements are tracked separately for the commercial component. Leasing velocity improved during the period and management expects further upward pressure on in-place rents. Residential units are leased on 12-month terms while the commercial component is leased on a triple net basis. Key risks include interest rate exposure, tenant rollover, construction cost overruns and local supply additions.

Demographics and Employment

Median household income within a 2-mile radius of the property is approximately $459,000 and has grown 9.8% annually. Saddlebrook Market Lofts is located in Boston, MA, a market that has recorded 12.4% population growth over the last five years. Percentage rent and CAM reimbursements are tracked separately for the commercial component. New construction starts have decelerated due to higher financing costs and tighter lending standards, which supports the existing supply. Investor demand for Mixed-Use assets in Boston remains strong with recent trades at capitalization rates between 5.32% and 5.32%. The Boston Mixed-Use market has experienced absorption of 3400 thousand square feet or equivalent units over the trailing twelve months, outpacing new deliveries.

Employment growth is led by healthcare, logistics, education and professional services sectors. The Boston Mixed-Use market has experienced absorption of 2900 thousand square feet or equivalent units over the trailing twelve months, outpacing new deliveries. The property is walkable to transit, with 45 structured parking spaces shared between uses. The project combines ground-floor retail and restaurant space with upper-level residential and office components.

Business Plan Progress

Projected levered IRR is 7.3% with an equity multiple of 1.28x over the hold period. Residential units are leased on 12-month terms while the commercial component is leased on a triple net basis. The property is walkable to transit, with 26 structured parking spaces shared between uses. Leasing velocity improved during the period and management expects further upward pressure on in-place rents. Key risks include interest rate exposure, tenant rollover, construction cost overruns and local supply additions.

The business plan contemplates a hold period of 12 years with disposition upon achievement of target returns. The investment thesis is based on stabilizing occupancy, completing the capital plan and capturing rent growth to market. Distributions to investors for the quarter were paid at an annualized rate of 4.7% on contributed capital. Projected levered IRR is 8.9% with an equity multiple of 1.7x over the hold period. Percentage rent and CAM reimbursements are tracked separately for the commercial component.

Supply and Demand

Median household income within a 9-mile radius of the property is approximately $60,000 and has grown 11.5% annually. Employment growth is led by healthcare, logistics, education and professional services sectors. Percentage rent and CAM reimbursements are tracked separately for the commercial component. Market vacancy for comparable Mixed-Use product stands at 7.1%, down from 6.1% two years ago.

Percentage rent and CAM reimbursements are tracked separately for the commercial component. Saddlebrook Market Lofts is located in Boston, MA, a market that has recorded 9.8% population growth over the last five years. Investor demand for Mixed-Use assets in Boston remains strong with recent trades at capitalization rates between 7.77% and 7.77%. The property is walkable to transit, with 18 structured parking spaces shared between uses. Residential units are leased on 12-month terms while the commercial component is leased on a triple net basis.

Investment Overview

The investment thesis is based on stabilizing occupancy, completing the capital plan and capturing rent growth to market. The project combines ground-floor retail and restaurant space with upper-level residential and office components. Distributions to investors for the quarter were paid at an annualized rate of 3.7% on contributed capital. The business plan contemplates a hold period of 9 years with disposition upon achievement of target returns. Projected levered IRR is 6.8% with an equity multiple of 1.4x over the hold period. Residential units are leased on 12-month terms while the commercial component is leased on a triple net basis.

The property is walkable to transit, with 18 structured parking spaces shared between uses. Key risks include interest rate exposure, tenant rollover, construction cost overruns and local supply additions. Percentage rent and CAM reimbursements are tracked separately for the commercial component. The investment thesis is based on stabilizing occupancy, completing the capital plan and capturing rent growth to market. Leasing velocity improved during the period and management expects further upward pressure on in-place rents.

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Sales Comparison Data

Comparable	Location	Sale Date	Size	Price	$/Unit or SF	Cap Rate	Yr Built
Yarrow Mixed-Use Center	Pittsburgh, PA	05/17/2026	14	$13,415,928	$312	6.07%	2018
Parkview Market Lofts	Des Moines, IA	08/22/2023	14	$14,642,780	$341	8.07%	1995
Marlow Mixed-Use Center	Birmingham, AL	01/04/2026	17	$8,026,306	$187	7.84%	2015
Brookside Station District	Greenville, SC	12/11/2022	16	$5,986,543	$139	6.13%	1987
Prairie Station District	Kansas City, MO	10/28/2023	18	$17,790,955	$414	8.00%	2004
Orchard Mixed-Use Center	Buffalo, NY	07/15/2024	10	$14,348,811	$334	6.37%	1967
Timberline Market Lofts	Madison, WI	12/05/2022	17	$6,176,901	$144	7.87%	1991
Westgate Village	St. Louis, MO	08/30/2026	15	$10,782,302	$251	5.76%	2007
Pelican Market Lofts	Chicago, IL	02/11/2025	7	$16,879,000	$393	7.17%	2014
Aspen Market Lofts	Sacramento, CA	02/24/2022	16	$6,901,905	$161	5.32%	2023
Cypress Market Lofts	Milwaukee, WI	03/02/2022	15	$10,427,460	$243	7.02%	1980
Amberly Village	Savannah, GA	09/05/2023	16	$6,391,882	$149	6.22%	2008
Zephyr Village	Hartford, CT	02/02/2022	12	$9,175,420	$213	7.04%	1981
Bayview Station District	Philadelphia, PA	07/02/2026	14	$19,487,591	$453	6.31%	2008
Brookside Village	Philadelphia, PA	08/01/2026	16	$11,222,031	$261	5.15%	2009
Cobalt Mixed-Use Center	Denver, CO	10/26/2022	12	$10,632,180	$247	8.08%	1972
Pelican Mixed-Use Center	Boise, ID	02/25/2026	17	$19,457,401	$453	5.98%	2006
Crestline Market Lofts	Austin, TX	01/26/2023	15	$12,481,701	$290	5.35%	1996
Kingsley Mixed-Use Center	Kansas City, MO	04/19/2025	15	$10,753,373	$250	7.58%	1974
Cobalt Station District	Indianapolis, IN	08/26/2025	16	$13,796,226	$321	6.68%	1987
Ivy Mixed-Use Center	Columbus, OH	04/21/2022	17	$9,260,981	$215	6.20%	1977
Granite Mixed-Use Center	Louisville, KY	05/31/2026	18	$8,631,142	$201	5.38%	2022
Juniper Station District	Tampa, FL	02/17/2022	18	$10,798,223	$251	7.94%	1967
Verde Market Lofts	Austin, TX	05/16/2023	16	$9,146,842	$213	7.36%	1965
Zephyr Market Lofts	Milwaukee, WI	10/24/2023	11	$18,556,978	$432	7.44%	1997
Stonebridge Market Lofts	Austin, TX	07/08/2023	11	$14,155,746	$329	7.20%	2009
Keystone Mixed-Use Center	Charlotte, NC	04/27/2023	18	$11,736,253	$273	6.14%	1995
Kestrel Market Lofts	Buffalo, NY	11/16/2024	9	$12,596,411	$293	5.37%	1979
Driftwood Market Lofts	Riverside, CA	01/19/2026	13	$11,476,811	$267	5.30%	1995
Ivy Mixed-Use Center	Des Moines, IA	10/28/2023	7	$7,755,603	$180	7.47%	1972
Whitaker Station District	Norfolk, VA	02/17/2025	10	$15,051,585	$350	5.73%	1996
Ridgeline Village	Norfolk, VA	02/12/2026	14	$8,308,926	$193	6.18%	1981
Alder Village	Portland, OR	12/21/2024	8	$12,017,333	$279	6.44%	2004
Hawthorne Village	Memphis, TN	01/01/2022	13	$5,933,694	$138	7.71%	2009
Lakeshore Mixed-Use Center	Albuquerque, NM	08/15/2026	14	$19,300,100	$449	5.11%	1990
Everett Village	Houston, TX	01/18/2023	7	$13,056,667	$304	5.66%	1997
Quincy Market Lofts	Indianapolis, IN	07/06/2023	15	$12,975,078	$302	5.87%	1998
Amberly Market Lofts	Portland, OR	11/30/2024	10	$19,060,730	$443	6.35%	2007
Tidewater Station District	Tampa, FL	08/26/2023	17	$11,289,678	$263	5.60%	1981
Windmill Village	Raleigh, NC	12/19/2025	14	$16,119,036	$375	6.89%	1974
Ivy Market Lofts	Las Vegas, NV	07/28/2022	17	$10,571,033	$246	6.82%	1983
Tidewater Mixed-Use Center	Tampa, FL	10/21/2023	7	$7,244,494	$168	5.03%	2001
Prairie Market Lofts	Oklahoma City, OK	01/19/2026	15	$13,805,511	$321	5.34%	2012

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Improvements Description

Exterior finishes comprise brick veneer, fiber-cement siding and aluminum storefront glazing in good condition. Residential units are leased on 12-month terms while the commercial component is leased on a triple net basis. Percentage rent and CAM reimbursements are tracked separately for the commercial component. Common area interiors have been refreshed within the last 3 years and are in average to good condition. The roof is a 26-year membrane system with an estimated remaining useful life of 9 years.

Saddlebrook Market Lofts was originally constructed in 1969 and consists of 42,996 SF in a building of 6 stories. Residential units are leased on 12-month terms while the commercial component is leased on a triple net basis. Mechanical systems include rooftop package units and central plant equipment of varying age. The roof is a 5-year membrane system with an estimated remaining useful life of 8 years. The property is walkable to transit, with 37 structured parking spaces shared between uses.

Operating Performance

Percentage rent and CAM reimbursements are tracked separately for the commercial component. Management fees are calculated at 4.9% of collected revenue and are included in operating expenses. Residential units are leased on 12-month terms while the commercial component is leased on a triple net basis. Operating expenses totaled $32,000 or approximately 44.86 per square foot, with real estate taxes representing the largest line item. The project combines ground-floor retail and restaurant space with upper-level residential and office components.

A reserve for replacements of $250 per unit has been underwritten in the cash flow below net operating income. Management fees are calculated at 4.4% of collected revenue and are included in operating expenses. The going-in capitalization rate of 7.26% reflects the in-place income and the stabilized occupancy assumption. The property is walkable to transit, with 27 structured parking spaces shared between uses. Percentage rent and CAM reimbursements are tracked separately for the commercial component.

Construction Details

The property is walkable to transit, with 15 structured parking spaces shared between uses. The project combines ground-floor retail and restaurant space with upper-level residential and office components. Mechanical systems include rooftop package units and central plant equipment of varying age. The structure is of wood-frame, masonry and steel-frame construction on a slab-on-grade foundation. Common area interiors have been refreshed within the last 11 years and are in average to good condition. Percentage rent and CAM reimbursements are tracked separately for the commercial component.

Common area interiors have been refreshed within the last 9 years and are in average to good condition. The structure is of wood-frame, masonry and steel-frame construction on a slab-on-grade foundation. Exterior finishes comprise brick veneer, fiber-cement siding and aluminum storefront glazing in good condition. Mechanical systems include rooftop package units and central plant equipment of varying age. Life-safety systems include a fully sprinklered building, addressable fire alarm panel and emergency lighting.

Valuation Discussion

The project combines ground-floor retail and restaurant space with upper-level residential and office components. Operating expenses totaled $211,000 or approximately 18.02 per square foot, with real estate taxes representing the largest line item. A reserve for replacements of $250 per unit has been underwritten in the cash flow below net operating income. The going-in capitalization rate of 7.40% reflects the in-place income and the stabilized occupancy assumption. Effective gross income for the trailing period was $28,000, representing a 8.0% increase over the prior year.

Residential units are leased on 12-month terms while the commercial component is leased on a triple net basis. Net operating income is projected to grow at a compound annual rate of 3.1% over the hold period. Debt service coverage ratio was 7.29x on a trailing basis against a covenant minimum of 1.20x. Management fees are calculated at 6.1% of collected revenue and are included in operating expenses.

Improvements Description

The property is walkable to transit, with 25 structured parking spaces shared between uses. The structure is of wood-frame, masonry and steel-frame construction on a slab-on-grade foundation. Residential units are leased on 12-month terms while the commercial component is leased on a triple net basis. Percentage rent and CAM reimbursements are tracked separately for the commercial component.

The structure is of wood-frame, masonry and steel-frame construction on a slab-on-grade foundation. The project combines ground-floor retail and restaurant space with upper-level residential and office components. The property is walkable to transit, with 28 structured parking spaces shared between uses. Life-safety systems include a fully sprinklered building, addressable fire alarm panel and emergency lighting. Percentage rent and CAM reimbursements are tracked separately for the commercial component.

Operating Performance

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Rent Comparables

Comparable	Distance	Yr Built	Space Type	Asking Rent	Occupancy	Concessions
Redwood Mixed-Use Center	3.9 mi	2003	2BR	$19.96	87.9%	1 mo. free
Kingsley Market Lofts	4.8 mi	2003	Inline	$20.21	88.4%	$500
Jasper Market Lofts	2.9 mi	2007	2BR	$24.64	92.8%	$500
Osprey Market Lofts	4.0 mi	2004	Suite	$23.58	95.5%	None
Northgate Village	3.8 mi	1999	Inline	$22.55	92.1%	None
Osprey Market Lofts	1.0 mi	1980	Bay	$19.38	97.0%	1 mo. free
Wexford Market Lofts	2.8 mi	1997	Suite	$24.61	95.1%	$500
Oakmont Village	3.4 mi	2023	1BR	$20.28	90.3%	None
Lakeshore Mixed-Use Center	5.0 mi	2015	Bay	$22.10	88.6%	1 mo. free
Tidewater Station District	2.4 mi	2005	2BR	$23.70	93.0%	$500
Marlow Station District	2.1 mi	2012	Inline	$19.74	87.3%	$500
Wexford Mixed-Use Center	1.2 mi	2006	Bay	$24.54	90.8%	None
Willow Village	4.3 mi	1987	Inline	$22.53	91.5%	None
Granite Village	3.6 mi	2006	Inline	$23.00	94.1%	1 mo. free
Parkview Market Lofts	1.2 mi	2017	2BR	$22.74	90.1%	1 mo. free
Juniper Village	0.8 mi	1988	1BR	$25.52	89.3%	1 mo. free
Keystone Mixed-Use Center	2.3 mi	1980	Suite	$22.64	89.1%	$500
Jasper Market Lofts	1.0 mi	1983	Studio	$23.36	94.9%	None
Palisade Mixed-Use Center	2.3 mi	1979	1BR	$19.33	86.1%	$500
Lantern Market Lofts	1.8 mi	1995	Suite	$18.77	87.2%	1 mo. free
Westgate Village	2.7 mi	2017	Unit	$20.07	93.6%	$500
Timberline Village	3.3 mi	1971	2BR	$21.38	90.7%	$500
Calloway Market Lofts	4.9 mi	1974	Suite	$19.55	89.8%	None
Stonebridge Station District	2.1 mi	1979	Suite	$25.12	93.2%	$500
Westgate Market Lofts	3.7 mi	2003	1BR	$19.97	93.5%	$500
Driftwood Village	4.6 mi	1988	Inline	$23.40	92.2%	None
Cedar Mixed-Use Center	3.6 mi	1985	Unit	$22.12	90.5%	None
Elmhurst Station District	1.7 mi	1978	Inline	$19.45	91.7%	None
Ivy Market Lofts	1.1 mi	1996	2BR	$20.37	90.7%	None
Lockwood Market Lofts	1.7 mi	1986	Suite	$20.32	90.0%	None
Pinecrest Mixed-Use Center	4.2 mi	1995	Suite	$21.97	93.4%	None
Birchwood Market Lofts	0.9 mi	1987	Inline	$22.87	93.8%	1 mo. free
Juniper Market Lofts	1.2 mi	1992	2BR	$21.87	87.1%	None
Magnolia Mixed-Use Center	4.4 mi	2023	2BR	$19.97	95.7%	1 mo. free
Sable Village	2.8 mi	1980	Bay	$20.75	92.0%	None
Hawthorne Station District	2.5 mi	1994	Suite	$26.40	96.3%	None
Westgate Market Lofts	1.7 mi	1993	Inline	$26.06	93.5%	1 mo. free
Wexford Market Lofts	2.9 mi	2018	Studio	$21.84	92.1%	$500
Palisade Mixed-Use Center	2.0 mi	2016	2BR	$23.46	91.1%	1 mo. free
Granite Village	0.3 mi	1988	Studio	$25.97	93.8%	$500
Parkview Station District	4.8 mi	2014	2BR	$19.56	97.2%	1 mo. free

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Leasing and Marketing

Percentage rent and CAM reimbursements are tracked separately for the commercial component. On-site staffing consists of a property manager, assistant manager, maintenance supervisor and 35 additional team members. The manager completes a monthly walk of the property and submits a variance report to the owner by the 6th business day. The project combines ground-floor retail and restaurant space with upper-level residential and office components.

Preventive maintenance schedules for HVAC, elevators and life-safety systems were completed on time during the period. Collections for the period were 94.0% of billed charges, with bad debt of 4.3% of gross potential income. Residential units are leased on 12-month terms while the commercial component is leased on a triple net basis. The manager completes a monthly walk of the property and submits a variance report to the owner by the 25th business day. The project combines ground-floor retail and restaurant space with upper-level residential and office components. The property is walkable to transit, with 38 structured parking spaces shared between uses.

Market Overview

Median household income within a 1-mile radius of the property is approximately $478,000 and has grown 13.1% annually. Investor demand for Mixed-Use assets in Boston remains strong with recent trades at capitalization rates between 6.92% and 6.92%. Residential units are leased on 12-month terms while the commercial component is leased on a triple net basis. Saddlebrook Market Lofts is located in Boston, MA, a market that has recorded 11.4% population growth over the last five years. Employment growth is led by healthcare, logistics, education and professional services sectors.

Rent growth in the submarket has averaged 6.5% annually over the past 11 years. Saddlebrook Market Lofts is located in Boston, MA, a market that has recorded 11.5% population growth over the last five years. New construction starts have decelerated due to higher financing costs and tighter lending standards, which supports the existing supply. The Boston Mixed-Use market has experienced absorption of 3800 thousand square feet or equivalent units over the trailing twelve months, outpacing new deliveries. Percentage rent and CAM reimbursements are tracked separately for the commercial component.

Leasing and Marketing

The property is walkable to transit, with 48 structured parking spaces shared between uses. The manager completes a monthly walk of the property and submits a variance report to the owner by the 15th business day. Preventive maintenance schedules for HVAC, elevators and life-safety systems were completed on time during the period. Service requests are tracked through a work-order system with an average completion time of 43 hours. Percentage rent and CAM reimbursements are tracked separately for the commercial component. Marketing efforts include digital listings, signage, broker outreach and a resident referral program.

Preventive maintenance schedules for HVAC, elevators and life-safety systems were completed on time during the period. The project combines ground-floor retail and restaurant space with upper-level residential and office components. Residential units are leased on 12-month terms while the commercial component is leased on a triple net basis. Service requests are tracked through a work-order system with an average completion time of 39 hours.

Market Overview

Residential units are leased on 12-month terms while the commercial component is leased on a triple net basis. The property is walkable to transit, with 39 structured parking spaces shared between uses. Rent growth in the submarket has averaged 4.4% annually over the past 12 years. New construction starts have decelerated due to higher financing costs and tighter lending standards, which supports the existing supply.

Percentage rent and CAM reimbursements are tracked separately for the commercial component. The Boston Mixed-Use market has experienced absorption of 2200 thousand square feet or equivalent units over the trailing twelve months, outpacing new deliveries. Employment growth is led by healthcare, logistics, education and professional services sectors. The property is walkable to transit, with 40 structured parking spaces shared between uses. Median household income within a 9-mile radius of the property is approximately $242,000 and has grown 9.5% annually.

Property Operations

Preventive maintenance schedules for HVAC, elevators and life-safety systems were completed on time during the period. Percentage rent and CAM reimbursements are tracked separately for the commercial component. The manager completes a monthly walk of the property and submits a variance report to the owner by the 26th business day. Residential units are leased on 12-month terms while the commercial component is leased on a triple net basis. The project combines ground-floor retail and restaurant space with upper-level residential and office components.

The project combines ground-floor retail and restaurant space with upper-level residential and office components. Collections for the period were 91.5% of billed charges, with bad debt of 6.5% of gross potential income. Percentage rent and CAM reimbursements are tracked separately for the commercial component. Marketing efforts include digital listings, signage, broker outreach and a resident referral program.

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Disclaimer and Confidentiality

The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MA. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. This document relates solely to Saddlebrook Market Lofts and has been prepared for the use of the recipient only; it may not be reproduced or distributed.

All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MA. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Time is of the essence with respect to each and every provision of this instrument. This document relates solely to Saddlebrook Market Lofts and has been prepared for the use of the recipient only; it may not be reproduced or distributed.

This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. This document relates solely to Saddlebrook Market Lofts and has been prepared for the use of the recipient only; it may not be reproduced or distributed.

Time is of the essence with respect to each and every provision of this instrument. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MA. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. This document relates solely to Saddlebrook Market Lofts and has been prepared for the use of the recipient only; it may not be reproduced or distributed.

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